

The Company Law Board Regulations, 1991

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[The Company Law Board Regulations, 1991](#)

[Published vide Notification No. G.S.R. 291\(E\), dated 31st May, 1991](#)

[In exercise of the powers conferred by sub-section \(6\) of section 10 E of the Companies Act, 1956 \(1 of 1956](#)

[\), the Company Law Board thereby makes the following regulations namely:-](#)

[Chapter I](#)

[Preliminary](#)

[1.](#)

[Short title, commencement and interpretation.](#)

[\(1\)](#)

[These regulations may be called the Company Law Board Regulations, 1991](#)

1. They shall come into force on the date of their publication in the Official Gazette.

2.

The General Clauses Act, 1897 (

10 of 1897

), applies to the interpretation of these regulations as it applies to the interpretations of a Central Act.

2. Definitions.

(1)

In these regulations, unless the context otherwise requires -

(a)

"Act" means the Companies Act, 1956 (

1 of 1956

) and Companies Act, 2013 (1 of 2013) as applicable;

(b)

"Annexure" means an Annexure to these regulations;

(c)

"Application" means and applications by which an interlocutory proceeding is commenced before a Bench;

(d)

"Authorized representative" means a person authorized in writing by a party under sub-regulation (2) of regulation 19 to function before a Bench as the representative of such party.

(e)

"Bench" means a Bench of the Board and includes the Principal Bench, Additional Principal Bench and a member sitting singly;

(f)

"Bench Officer" means an officer notified by the Board for the purpose of -

(i)

receiving, examining and processing of applications; and

(ii)

performing such other functions as may be entrusted to him by or under these regulations;

(g)

"Board" means the Board of Company Law Board Administration, constituted under section 10E of the Act.

(h)

"Certified" means, in relation to a copy, certified as provided in section 76 of the Indian Evidence Act, 1872 (

1 of 1872

);

(i)

"Chairman" means Chairman of the Board.

(j)

"Company" includes a non-banking financial company as defined in clause (f) of section 45-I of the Reserve Bank of India Act, 1934 (

2 of 1934

) and a foreign company;

(k)

"Filed" means filed in the office of the Bench.

(l)

"Form" means a form specified in Annexure-II;

(m)

"Member" means a member (whether judicial or technical) of the Board and includes the Chairman and Vice-Chairman

(n)

"The Monopolies Act" means the Monopolies and Restrictive Trade Practices Act, 1969 (54 of 1969);

(o)

"Office of the Bench" means the office of the Bench Officer;

(p)

"Party" means a person who files an application or petition before a Bench, the respondent; the Registrar of Companies or the Regional Director and includes any person who has a right under the Act or the Reserve Bank of India Act, 1934 (2 of 1934

) to make suggestion or objections;

(q)

"Petition" means an application, appeal or complaint in pursuance of which any proceeding, not being an interlocutory proceeding, is commenced by the Bench;

(r)

"Reference" means a reference within the meaning of regulation 35, 40 and 42 of these regulations'

(s)

"Regional Director"" means a person appointed by the Central Government as a Regional Director for the purpose of the Act;

(t)

"Registrar" means Registrar of Companies appointed under the Act;

(u)

"Sealed" means sealed with the seal of the 'Board' of 'Bench';

(v)

"Secretary" means Secretary to the Board and includes "Under Secretary" to the Board and any other officer by whatever name called, to whom powers and duties of Secretary may be entrusted under regulation 31;

(w)

"Section" means a section of the Act;

(x)

Omitted by Amendment Regulations, 1997. G.S.R. 433(E) dated 1/8/97

(y)

"Vice-Chairman" means Vice Chairman of the Board;

(2)

Words or expressions occurring in these regulations and not defined in sub-regulation (1) shall bear the same meaning as in the Act.

Chapter II

General

3.

Composition of Benches of the Board.

(1)

Subject to regulation 4 every Bench of the Board formed under the sub-section (4B) of section 10E may consist of one or more members.

(2)

The order of the Chairman forming any Bench shall specify therein the powers which shall be exercised and functions which shall be discharged by the Bench.

(3)

The Chairman shall, in relation to each Bench formed specify the member of the Bench before whom every matter requiring decision of the Board (not being a matter affecting the final disposal of the petition) shall be placed for orders and in the absence of the member so specified every such matter shall be placed before any other member of the Bench who is present.

4.

Power of the Chairman to specify matters which may be dealt with by a Bench.

(1)

It shall be lawful for the Chairman to provide that matters falling under sections 250, 269 and 388B of the Act and under section 2A of the Monopolies and Restrictive Trade Practices Act, 1969 (54 of 1969) shall be dealt with by the Principal Bench consisting of one or more Members.

(2)

The Principal Bench shall be at New Delhi but it may sit at any other place in India at its discretion or at the joint request of all the parties.

(3)

It shall be lawful for the Chairman to provide that matters falling under sections 43, 49, 58A, 58AA, 79, 80A, 111 and /or 111A (petitions received and registered in CLB upto 11.09.2013), 113, 117, 117C, 118, 144, 163, 167, 186, 196, 219, 225, 235, 237B, 247, 248, 304, 307, 614, 621A and all matters arising under Chapter VI (Prevention of oppression and mismanagement) of the Companies Act, 1956, section 45QA of the R.B.I. Act, 1934 and sections 24, 58 and 59 (petitions received and registered in CLB on or after 12.09.2013) of the Companies Act, 2013 shall be dealt by Regional Benches, namely, New Delhi Bench, Chennai Bench, Kolkata Bench and Mumbai Bench, consisting of one or more Members. (No. 10/36/2001-CLB dated 25.09.2013)

Provided that matters pending before the Principal Bench and Additional Principal Bench as on 1st day of April, 2008 shall continue to be disposed of in the name of Principal Bench and Additional Principal Bench respectively:

Provided further that notwithstanding anything contained in regulation 7, it shall be lawful for the Chairman to inter-se transfer any matter pending before a Regional Bench to any Member or to any other Regional Bench or to the Principal Bench either at the joint request of all the parties or for other reasons to be recorded in writing. (No. 10/35/2001-CLB dated 07.12.2012 & 21.12.2012)

5.

Vacancy in the office of the Chairman.

- Omitted by Amendment Regulations G.S.R. 593(E) dated 25/7/94

6.

Inability of the Chairman to function.

- Omitted by Amendment Regulations, 1994 G.S.R. 593(E) dated 25/7/94

7.

Jurisdiction of the Bench.

(1)

All proceedings, other than the proceedings before the Principal Bench under regulation 4, shall be instituted before the Bench within whose jurisdiction the registered office of the company is situated or at any other place outside the region with the consent of the parties. G.S.R. 492(E) dated 14/5/1992

(2)

"The States or Union-territories falling under the geographical jurisdiction of the Regional Benches shall be as provided in Annexure-I;

(3)

"The Regional Benches shall ordinarily have their sittings at Kolkata, Mumbai, Chennai and New Delhi:

Provided that the Benches may, at their discretion, hold sittings in any other city or town falling within their respective geographical jurisdiction or any other place outside their jurisdiction with the consent of the parties"; G.S.R. 185(E) dated 17/3/2008

8.

Language of the Bench.

(1)

The proceedings of a Bench shall be conducted in English or Hindi.

(2)

No petition, application, reference, document or other matter contained in any language other than English or Hindi shall be accepted by the Board unless the same is accompanied by a true translation thereof in English or Hindi.

(3)

All documents required to be translated into English or Hindi shall be translated by a person appointed or approved by the Board.

Provided that any translation which is agreed to by the parties to the proceedings may be accepted by the Board in appropriate cases as a true translation.

(4)

All final and interlocutory orders of the Bench shall be in English or Hindi.

9.

Sitting hours of the Bench.

- Sitting hours of the Benches shall ordinarily be from 10.30 a.m. to 1.30 p.m and from 2.30 p.m to 4.30 p.m. on all working days except Saturday, Sunday and other public Holidays, subject to any general or special order made by the Chairman.

10.

Bench to have seal of its own.

(1)

There shall be a separate seal of a Bench of the Board.

(2)

Every such seal shall be kept in the custody of the Secretary or Bench Officer and shall be used under his direction or control.

(3)

Every order or communication made, notice issued or certified copy granted, by a Bench shall be stamped with the seal of the concerned Bench, and shall be authenticated by the Secretary or the Bench Officer, as the case may be.

11.

Petitions, etc. to be in writing.

(1)

Every affidavit, application, reference or petition shall be written, typewritten cyclostyled or printed, neatly and legibly, on one of the substantial paper of foolscap size in double space and separate sheets shall be stitched together and every page shall be consecutively numbered.

(2)

Numbers and dates specified in any affidavit, application, reference or petition shall be expressed in figures as well as in words; and, where the date specified therein has not been stated according to the Gregorian Calendar, the corresponding date according to the Gregorian Calendar shall also be specified.

12.

Application, reference or petition to be divided into paragraphs.

- Every application, reference or petition shall be divided into separate paragraphs which shall be numbered serially and shall state thereon the matter, and the name of the company, to which it relates.

13.

General heading to be in Form No. 1 in Annexure II.

- The general heading in all proceedings, whether original or interlocutory, and of advertisements and notices, shall be as in Form No. 1 in Annexure II.

14.

Procedure for filing petition.

(1)

Subject to the provision of regulations 35 and 37, a petition to the Bench shall be prepared in Form No. 1 in Annexure II and presented by the petitioner in person or through authorized representative to the office of the Bench or be sent by registered post with acknowledgement due addressed to the Secretary or Bench Officer of the Bench concerned, as the case may be.

(2)

The petitioner/ applicant shall serve an advance notice with a copy of the petition, reference or application on the respondent(s) and shall produce evidence of such service at the time of presentation of such petition, reference or application in CLB. (No. 10/36/2001-CLB dated 25.09.2013).

Provided that where the number of respondents is more than five, Secretary or Bench Officer may permit the petitioner to file extra copies of the petition at the time of issue of notice to the respondents.

(3)

The Petitioner shall serve a copy of the reference or petition other than a petition under section 49, 79, 80A, 111 and/or 111A (petitions received and registered in CLB upto 11.09.2013), 113, 118, 144, 163, 196, 219, 225, 284, 304 and 307 of the Companies Act, 1956 and under sections 58 and 59 (petitions received and registered in CLB on or after 12.09.2013) of the Companies Act, 2013, upon the concerned Registrar of Companies having jurisdiction over the company and shall attach to and present with his petition, reference, an acknowledgement from the office of the

Registrar of Companies receiving a copy of the petition or reference so served. (No. 10/36/2001-CLB dated 25.09.2013). Provided that, in case of a petition or complaint under section 235, 237, 250, 397, 398, 408 and 409 of the Act, a copy thereof shall also be served upon the Central Government.

(4)

(a)

Notwithstanding anything contained in sub-regulations (1) to (2), the Bench may permit more than one person to join together and file a single petition if it is satisfied, having regard to the cause of action and the nature of relief prayed for, that they have a common interest in the matter.

(b)

Such permission shall be granted where the joining of the petitioners by a single petition is specifically permitted by the Act.

(5)

Every petition, other than an application under sub-section (9) of section 58A or subsection (4) of section 117C of the Act or under sub-section (2) of section 45QA of the Reserve Bank of India Act, 1934 (2 of 1934

), shall be accompanied by an affidavit verifying the same and shall be drawn up in the first person and shall state the full name, age, occupation and complete residential address of the deponent and shall be signed by the deponent and sworn before the person specified in section 558 of the Act.

(6)

Where the deponent is not personally known to the person before whom the affidavit under sub-regulation (5) is sworn, he shall be identified by a person who is known to the person before whom the affidavit is sworn.

(7)

Every affidavit under sub-regulation (5) shall clearly and separately indicate the statements which are true to the-

(a)

Knowledge of the deponent;

(b)

Information received by the deponent;

(c)

Belief of the deponent; and

(d)

Information based on legal advice.

(8)

Where the statement referred to in sub-regulation (7) is stated to be true to the information received by the deponent, the affidavit shall also include the name and complete residential address of the person from whom the information has been received by the deponent and whether the deponent believes that information to be true.

15.

Presentation and scrutiny of petition.

(1)

The office of the Bench shall endorse on every petition the date on which it is presented.

(2)

Every petition or application shall be presented in CLB after giving two clear working days advance notice for mentioning (excluding the date of such presentation) and accompanied by evidence of such advance notice having been served on the respondent(s). If, on scrutiny, the petition or application is found to be in order, it shall be duly registered and given a serial number. (No. 10/36/2001-CLB dated 25.09.2013).

Provided that in an exceptional situation of urgency, the above notice period may be dispensed with by the order of

(3)

If the petition, on scrutiny, is found to be defective and the defect noticed is formal in nature, the Secretary or Bench Officer may allow the party to rectify the same in his presence and if the said defect is not formal in nature, the Secretary or Bench Officer may allow the petitioner such time to rectify the defect as he may deem fit.

(4)

Where the petitioner is aggrieved by the order made by the Secretary or Bench Officer under sub-regulation (3), the matter shall be placed before the Bench for its order and it shall be competent for a single member of the Bench to issue necessary direction which shall be deemed to be the direction of the Bench.

16.

Contents of petition.

- Every petition; other than an application filed under regulation 37 shall set forth the name of the company, with its status, date of incorporation, the address of its registered office, authorized capital, paid-up capital with division of different classes of shares and terms of issue, if any, in the case of preference shares, main objects in brief, for which the company was formed, present business activities of the company, and shall also set forth concisely under distinct heads the grounds for such petition and the nature of relief(s) prayed for.

17.

Contents of interlocutory application.

- An application filed subsequent to the filing of the petition applying for any interim order or direction shall, as far as possible, be in Form No. 2 in Annexure II and shall be accompanied by an affidavit verifying the application in the manner laid down in regulation 14:

Provided that it shall not be necessary to present a separate application to seek an interim relief or direction, except for condonation of delay in filing the petition, if, in the original petition, the same is prayed for.

18.

Documents to accompany the petition.

(1)

A petition shall be accompanied by documents as prescribed in Annexure III and shall be accompanied by an index of documents, brief of synopsis within two pages and date of events within two pages. (No. 10/36/2001-CLB dated 25.09.2013).

(2)

Documents referred to in sub-regulation (1) may be attested by the party or the authorized representative or the advocate and the documents shall be marked serially as Annexures A1, A2, A3 and so on.

(3)

Where the petition is filed by the authorized representative, memorandum of appearance shall be appended to the petition as in Form No. 5 in Annexure II.

Provided that where the petition is filed by an advocate, it shall be accompanied by a duly executed Vakalatnama.

19.

Rights of a party to appear before the Bench.

(1)

Every party may appear before a Bench in person or through an authorized representative.

(2)

A party may, in writing, authorize an Advocate or a Secretary-in-whole-time practice or a practicing Chartered Accountant or practicing Cost and Works Accountant, to function as a representative of such party. A company may appoint and authorize its Directors or Company Secretary to appear, in its behalf, in any proceedings before the Bench. The Central Government, the Regional Director or the Registrar may authorize an officer to appear in its behalf. G.S.R. 492(E) dated 14/5/1992

20.

Plural remedies.

- A petition shall be based upon a single cause of action and may seek one or more reliefs provided that they are consequential to one another.

21.

Service of notice and process issued by the Bench.

(1)

Any notice or process to be issued by the Bench may be served by any of the following modes directed by the Bench:

(i)

service by the party itself;

(ii)

by hand delivery (dasti) through a messenger of the Office of the Bench;

(iii)

under Certificate of Posting;

(iv)

by registered post with acknowledgement due if so required by an order of the Bench;

(v)

where the Central Government is a party, through the Secretary of the concerned Ministry or Department or through Branch Secretariat of the Ministry of Law or through Standing Counsel of the Central Government;

(vi)

where the State Government is a party, through the Chief Secretary or the Standing Counsel of the State Government.

(2)

Where a notice is required to be served on a company, it shall be served in the manner specified in section 51 or, in the case of a foreign company, in the manner specified in section 496, and may also be served in such other manner as the Secretary or the Bench Officer may direct.

(3)

Save as otherwise provided in sub-regulation (2), notices and other documents, which are required to be served on any person, other than a company, shall be served by delivering or tendering a copy thereof to such person or his authorized representative, where he appears by such representative or by prepaid registered post, acknowledgement due, addressed to the last-known address of such person.

(4)

Where a notice is served by registered post the Secretary or Bench Officer may, if the acknowledgement is not received, determine the question as to the sufficiency of the service of the notice.

(5)

Where the notice sent by registered post is returned by the post office with the remark "refused", the notice may be presumed to have been duly served.

(6)

Every notice, of the petition or reference issued by the Bench shall, unless otherwise ordered, be accompanied by a copy of the petition or reference, as the case may be.

(7)

Notwithstanding anything contained in sub-regulation (1) to (6), where, for any reason whatsoever, it is not reasonably practicable to serve notice of petition on all the respondents, the notice may be served by public advertisement, as the Bench may in each case direct,

(8)

The Bench shall in such cases, determine who shall bear the cost of the public advertisement.

22.

Filling of reply and other documents by the respondents.

(1)

Each respondent intending to contest the petition shall file, in triplicate, the reply to the petition and the documents relied upon with the office of the Bench within such period as may be fixed by the Bench but not exceeding fifteen days of service of petition upon him.

(2)

In the reply filed under sub-regulation (1), the respondent shall specifically admit, deny or explain the facts stated by the petitioner in his petition and may also state such additional facts as may be found necessary for the just decision of the case. The reply so filed shall be signed and verified in the manner as provided in regulation 14.

(3)

The documents referred to in sub-regulation (1) shall also be filed along with the reply and the same shall be marked as Annexures R1, R2, R3 and so on.

(4)

The respondents shall also serve a copy of the reply along with the document mentioned in sub-regulation (1) duly attested to be true copies on the petitioner or his authorized representative, if any, and file proof of such service with the office of the Bench.

(5)

The Bench may, if so satisfied, allow filing of the reply after the expiry of the prescribed period on sufficient cause being shown.

23.

Filing of counter-reply by the petitioner.

- Where the respondent states such additional facts as may be necessary for the just decision of the case under sub-regulation (2) of regulation 22, the Bench may allow the petitioner to file a counter-reply to the reply filed by the respondent. The procedure laid down in regulation 22 shall apply, mutatis mutandis, to the filing of such counter-reply.

24.

Power of the Bench to call for further information/evidence.

- The Bench may, before passing orders on the petition, require the parties or any one or more of them, to produce such further documentary or other evidence as the Bench may consider necessary-

(a)

for the purpose of satisfying itself as to the truth of the allegations made in the petition; or

(b)

for ascertaining any information which, in the opinion of the Bench, is necessary for the purpose of enabling it to pass orders on the petition.

25.

Hearing of petition.

- The Bench may, if sufficient cause is shown at any stage of the proceeding grant time to the parties or any of them and adjourn the hearing of the petition or the application. The Bench may make such order as it thinks fit with respect to the costs occasioned by such adjournment.

26.

Procedure to be followed where any party does not appear.

(1)

Where, on the date fixed for hearing of the petition or any application or on any other date to which such hearing may be adjourned, the petitioner or the applicant as the case may be, does not appear when the petition or the application is called for hearing, the Bench may, in its discretion, either dismiss the petition or the application for default or hear and decide the same ex parte.

(2)

Where a petition or application has been dismissed for default and the petitioner or the applicant files an application within thirty days from the date of dismissal and satisfies the Bench that there was sufficient cause for his non-appearance when the petition or the application was called for hearing. The Bench may pass an order setting aside the order dismissing the petition or the application and restore the same.

Provided, however, where the case was disposed on merit, the decision shall not be recalled.

(3)

Where, on the date fixed for hearing or any other date to which such hearing may be adjourned, the petitioner appears but the respondent does not appear when the petition is called for hearing, the Bench, may, in its discretion, adjourn the hearing or hear and decide the petition ex parte.

(4)

Where the petition has been heard ex parte against the respondent or respondents, such respondent or respondents may apply to the Bench within thirty days for an order to set aside and if the respondent and respondents satisfy the Bench that the notice was not duly served on him or them or that he or they were prevented by any sufficient cause from appearing when the petition was called for hearing, the Bench may make an order setting aside the ex parte order against him or them on such terms as it thinks fit and shall appoint a date for proceeding with the petition.

Provided that where the ex parte order is of such nature that it cannot be set aside as against one respondent only, it may be set aside as against all or any or the other respondents also.

Provided further that in cases covered by sub-regulation (7) of regulation 21, the Bench shall not set aside the ex parte order merely on the ground that a shareholder or a creditor did not have the notice of the petition.

27.

Review.

- Regulation 27 omitted by CLB (Amendment) Regulations, 1992. (vide G.S.R.492(E) dated 14/5/92)

28.

Substitution of legal representative.

(1)

In the case of death of any party during the pendency of the proceedings before the Bench, the legal representatives of the deceased party may apply within thirty days of the date of such death for being brought on record as necessary parties.

(2)

Where no application is received within the period specified in sub-regulation (1), the proceedings against the deceased party shall abate:

Provided that, on good and sufficient reasons, the Bench, on application, may set aside the order of abatement and substitute the legal representative.

29.

Order of the Bench.

(1)

Every order of the Bench shall be in writing, and shall be signed by the member or members constituting the Bench which pronounces the order.

(2)

In case of difference of opinion among the members of the Bench, the opinion of the majority shall prevail and the opinion or orders of the Bench shall be expressed in terms of the views of the majority:

Provided that where a matter is heard by a Bench consisting to an even number of Members and such members are divided equally in their opinion, it shall be placed before the Chairman who may himself deal with the matter or nominate any other Member to deal with the same. G.S.R. 492(E) dated 14/5/1992

(3)

Any order of the Bench deemed fit for publication in any journal, authoritative report or the Press may be released for such publication on such terms and conditions as the Board may specify by general or special order.

(4)

A copy of every interim order granting or refusing or modifying interim relief and final order passed on any petition or reference shall be communicated to the petitioner the applicant and to the respondents and other parties concerned free of cost:

Provided further that service of an order on a foreign party resident outside India shall be deemed to be sufficiently served if a copy thereof is delivered or tendered or sent by post at the last known address of such party's authorized representative(s) resident in India, where he appears by such representative(s). G.S.R. 682(E) dated 15/9/2011

(5)

If the petitioner or the applicant or the respondent to any proceedings requires a copy of any document or proceeding, the same shall be supplied to him on such terms and conditions and on payment of such fee as may be fixed by the Bench by general or special order.

(6)

The Bench may make such order or give such direction as may be necessary or expedient to give effect to its orders or to prevent abuse of its process or to secure the ends of justice.

(7)

It shall be lawful for a Bench to fix, and award, costs to any of the parties before it where it is of opinion that the award of such costs is necessary

30.

Inspection of record and supply of certified copies.

(1)

The record of a pending case shall be open, as of right, to the inspection and supply of the certified copies thereof to the parties or their authorized representatives, on making an application in writing and on payment of a fee of fifty rupees per day for inspection of documents of a case and ten rupees per page for supply of certified copies of order or any other document respectively and the inspection of record shall be pre-requirement for supply of certified copy of a case.

(2)

The applicant shall distinctly specify in the application, the record of a case for which inspection or certified copies are desired and the application may either be presented at the filing counter or may be sent by post at the address of the concerned Company Law Board Bench along with the requisite fees.

(3)

A person, who is not a party to the proceedings, has, however, no right to inspect or to obtain certified copies of the records of a pending case except with the consent of the party who has filed the case or under the orders of the Bench.

(4)

The inspection of record shall not be permitted on the date fixed for its hearing without the order of the Bench.

(5)

After receipt of an application, the inspection shall be allowed within a period of two working days and certified copies shall be supplied within a period of three working days respectively. G.S.R. 32(E) dated 18/1/2012

31.

Powers and functions of the Secretary.

(1)

The Secretary shall be the principal officer of the Board and shall exercise his powers and perform his duties under the control of the Chairman.

(2)

The Board, in discharge of its functions under the Act, may take such assistance from the Secretary, as it may deem fit, and the Secretary, shall be bound to assist the Board.

(3)

In particular and without prejudice to the generally of the provisions of this rule, the Secretary shall have the following powers and perform the following duties, namely:-

(a)

The Secretary shall have the custody of the records of the Principal Bench.

(b)

The Secretary shall receive all petitioners, applications or references pertaining to the Principal Bench.

(c)

The Secretary shall assist the Principal Bench in the proceedings relating to the powers exercised by the Principal Bench.

(d)

The Secretary shall have the power to call for information/records and to inspect or cause to be inspected the records of other Benches.

(e)

The Secretary shall authenticate the orders passed by the Principal Bench

(f)

The Secretary shall ensure compliance of the orders passed by the Principal Bench and other Benches.

(g)

The Official seal of the Board shall be in the custody and control of the Secretary.

(h)

The Secretary shall have the right to collect from the Central Government or other offices, companies and firms, or any other persons such information as may be considered useful for the purpose of efficient discharge of the functions of the Board under the Act and place the said information before the Board.

32.

Powers and duties of the Bench Officer.

(1)

In addition to the powers conferred elsewhere in these Regulations, the Bench Officer shall have the followings powers and duties subject to any general or special order of the Bench concerned, namely-

(i)

to receive all petitions or applications and other documents including transferred applications;

(ii)

to decide all questions arising out of the security of the petitions and applications before they are registered;

(iii)

to require any petition or application presented to the Bench to be amended in accordance with the Act and the regulations;

(iv)

subject to the direction of the Bench, to fix the date of first hearing of the petitions or applications or other proceedings and issue notices thereof;

(v)

to direct any formal amendment of records;

(vi)

to order grant of copies of documents to parties to the proceedings;

(vii)

to grant leave to inspect the records of the Bench;

(viii)

to dispose of matters relating to service of notices;

(ix)

to receive applications within thirty days from the date of death for substitution of authorized representatives of the deceased parties during the pendency of the petition or application;

(x)

to receive and dispose of application for substitution, except where the substitution would involve setting aside an order of abatement;

(xi)

to receive and dispose of applications by parties for return of documents.

(2)

An appeal against any decision by a Bench Officer under clause (ii), (iii), (v) and (vii) shall be made to the Bench by the aggrieved party within fifteen days from the date such decision is communicated to him.

33.

Registers of petitions and applications.

(1)

There shall be kept in the office of the Bench two separate registers, one for the petitions and the other for the applications filed before the Bench.

(2)

In every register, referred to in sub-regulation (1), there shall be entered the following particulars, namely -

(a)

the serial number of the petition or application and in addition, in the case of an application, the serial number of the petition to which it relates;

(b)

the date of presentation or receipt of the petition or application;

(c)

the name of the company to which the matter relates;

(d)

the name and address of the petitioner or applicant;

(e)

the names and addresses of the other parties to the petition or application and the names and addresses of the authorized representatives of the parties, if any;

(f)

the provision of law under which the petition or application is made;

(g)

the nature of the reliefs which have been sought;

(h)

the date of disposal of the petition or application;

(i)

the nature of the order made by the Bench;

(j)
the date when the formal order is drawn up and communicated to the parties;

(k)
remarks, if any.

(3)
Separate registers shall be opened for each year and each register of petitions shall be preserved permanently and each register of application shall be preserved for a period of eight years.

34.
Fees.

(1)
In respect of the several matters mentioned in Annexure III, there shall be paid fees for every petition as prescribed: Provided that no fee shall be payable or shall be liable to be collected on a petition filed or reference made by the Registrar of Companies, Regional Director or by any officer on behalf of the Central Government:

(2)
Fee as prescribed shall be levied and collected on every interlocutory application: Provided that no fee shall be payable or shall be liable to be collected on an application filed by the Registrar of Companies, Regional Director or by an officer on behalf of the Central Government.

(3)
In respect of a petition or application filed before the Principal Bench or other Regional Benches, fees payable under these regulations shall be paid by means of a bank draft or bankers cheque drawn in favour of Pay and Accounts Officer, Ministry of Corporate Affairs, New Delhi or Kolkata or Mumbai or Chennai, as the case may be.

Chapter III

Special Provisions Relating to Certain Specific Matters

35.
Reference to Company Law Board.

- Any reference to the Board by the Registrar of Companies under section 621A of the Act or any reference to the Board by the Central Government under sections 250, 269, 388-B and 408 of the Act or any reference by a company under clause (c) of sub-section (4) of section 22A of the Securities Act shall be made by way of an application in Form No. 3, and shall be accompanied by documents mentioned in Annexure III

36.
Omitted. (vide GSR630(E) dated 12/8/2012)

37.
Application for deposit and debenture.

- Applications under sub-section (9) of section 58A or under sub-section (4) of section 117C of the Act or 45QA of the Reserve Bank of India Act, 1934 (

2 of 1934
) , shall be in Form No. 4 in Annexure-II and shall be submitted in duplicate. (vide GSR 433(E) dated 1/8/1997 & (vide GSR 437(E) dated 15/6/2001)

38.
Petition under section 397 or 398.

- A petition under section 397 or 398 shall not be withdrawn without leave of the Board, and where the petition has been presented by a member or members authorized by the Central Government under sub-section (4) of section 399, notice of the application for leave to withdraw shall be given to the Central Government.

39.
Petition under section 407.

- A petition under clause (b) of sub-section (1) of section 407 for leave to any of the persons mentioned therein as to be appointed or to act as the managing or other director or manger of the company, shall state whether notice of the intention to apply for such leave has been given to the Central Government and shall be accompanied by a copy of such notice.

40.

Reference under section 621A.

(1)

Every application for compounding of an offence shall be made by a company or its officers in default to the Registrar specifying clearly the nature of offence, the date or period during which the offence was committed or continued, the name and address of officers of the company who have committed the offence and the prayer made.

(2)

The Registrar shall forward the application made by the company, together with his comments thereon, to the Board or the Regional Director, as the case may be, within 30 days from the date of receipt of the application.

(3)

Every Regional Director shall exercise the powers to compound an offence, subject to any general or special order of the Board.

41.

Petition under section 2A of the Monopolies Act.

- Provisions of these regulations shall apply mutatis-mutandis to the petition made under section 2A of the Monopolies Act.

42.

Reference under section 22A of the Securities Act.

- Omitted by CLB (Amendment) Regulation, 1997. (vide GSR 433(E) dated 1/8/97)

42A.

Intimation or petition under section 58AA or 117B.

- An intimation under sub-section (1) of section 58AA or a petition under sub-section (4) of section 117B of the Act, shall be filed in Form No. 1 in Annexure II. (vide GSR 437(E) dated 15/6/2001)

Chapter IV

Miscellaneous

43.

Enlargement of time.

- Where any period is fixed by or under these regulations or granted by a Bench, for the doing of any act, or filing of any documents or representation, the Bench, may, in its discretion, from time to time, enlarge such period, even though the period fixed by or under these regulations or granted by the Bench may have expired.

44.

Saving of inherent power of the Bench.

- Nothing in these rules shall be deemed to limit or otherwise affect the inherent power of the Bench to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Bench.

45.

Amendment of order.

- Any clerical or arithmetical mistake in any order of the Bench or error therein arising from any accidental slip or omission may, at any time, be corrected by the Bench either on its own motion or on the application of any party. (vide GSR 492(E) dated 14/5/1992)

46.

General power to amend.

- A Bench may, at any time, and on such terms as to costs or otherwise, as it may think fit, amend any defect or error in any proceeding before it; and all necessary amendments shall be made for the purpose of determining the real question or issue raised by or depending on such proceeding.

47.

Bench to be deemed to be a Court for certain purposes.

- A Bench shall be deemed to be a Court or lawful authority for the purpose of prosecution or punishment of a person who wilfully disobeys any direction or order of such Bench.

48.

Power to dispense with the requirement of the regulations.

- Every Bench shall have power, for reasons to be recorded in writing, to dispense with the requirements of any of these regulations, subject to such terms and conditions as may be specified.

49.

Preparation of paper book.

- The Bench Officer, if it so deemed fit, may call upon the parties to prepare a paper book after completion of the pleading.

50.

Dress for the member, for the authorised representatives and for the parties in person.

(1)

For the members - The dress for the members will be suit with a tie or buttoned-up coat over a pant.

(2)

For the authorised representatives - An authorised representative who is a professional, shall appear before the Bench in his/her professional dress, if any, and if there is no such dress,-

(a)

In the case of male, a suit with a tie or buttoned-up coat over a pant.

(b)

IN the case of female, in a saree or any other dress of a sober colour.

(3)

For parties in person - Parties appearing in person before the Company Law Board shall be properly dressed. (vide GSR 374(E) dated 2/5/1995)

51.

Restriction on Audio or video Recording by the parties.

- There shall be no audio or video recording of the Bench proceedings by the parties.

Annexure - I

States/ union Territories Falling Under Each Region

(See Regulation 7(2))

S. No.

Region

States/Union Territories

1.

Kolkata Bench

States of Arunachal Pradesh, Assam, Bihar, Manipur, Meghalaya, Nagaland, Orissa, Sikkim, Tripura, West Bengal, Jharkhand and Union Territories of Andaman and Nicobar Island and Mizoram.

2.

New Delhi Bench

States of Delhi, Haryana, Himachal Pradesh, Jammu & Kashmir, Punjab, Rajasthan, Uttar Pradesh, Uttaranchal and Union Territories of Chandigarh.

3.

Chennai Bench

States of Andhra Pradesh, Karnataka, Kerala, Tamil Nadu and Union Territories of Pondicherry and Lakshadweep Island.

4.

Mumbai Bench

States of Goa, Gujarat, Madhya Pradesh, Maharashtra, Chhattisgarh and (Union Territories of Dadra and Nagar Haveli and Damman and Diu)

Annexure - I

Forms

Form No. 1

(See Regulation 13, 14 and 42A)

Before the Company Law Board, Principal Bench Regional Bench, Bombay/ Calcutta/ Madras/ New Delhi

In the Matter of the Companies Act, 1956/ the Companies Act, 2013, Section

Or

(where applicable)

The Monopolies and Restrictive Trade Practices Act, 1969, Section 2A

Or

(where applicable)

The Reserve Bank of India Act, 1934, Section 45QA

And

In the Matter of

(State the name and registered office address of the company)

And

In the Matter of (Petitioner)

(state the name and address of the petitioner)

Or

(where applicable)

AB

Petitioner(s)

Versus

CD

Respondent (s)

1.

Details of petitionParticulars of the company,
whether petitioner or not (see regulation 16)

2.

Particulars of the petitioner(s) (need not be
stated where company is the petitioner) (Name, description,
father?s / husband?s name, occupation, capacity, i.e.
qua shareholder, qua depositor and address of the petitioner(s)

3.

Particulars of respondent(s) need not be stated
where company is the respondent) (Name, description, father?s
/ husband?s name, occupation, capacity, i.e. qua
shareholder, qua depositor and address of the petitioner(s)

4.

Jurisdiction of the Bench.

The petitioner declares that the
subject matter of the petition is within the jurisdiction of the
Bench.

5.

Limitation

The petitioner further declares
that the petition is within the limitation laid down in section
..... Of the Companies Act, 1956 (or
securities Act, 1956) (where applicable)

6.

Facts of the case are give below

(Give here a concise statement of
facts in a chronological order, each paragraph containing as
nearly as possible a separate issue, fact or otherwise.

7.

Matters not previously filed or pending with any other Court.

The petitioner further declares that he had not previously filed any application, writ petition or suit regarding the matter in respect of which this petition has been made, before any court of law or any other authority or any other Bench or the Board and not any such application, writ petition or suit is pending before any of them.

8.

Relief(s) sought.

In view of the facts mentioned in para above, the petitioner prays for the following relief(s): (Specify below the relief(s) sought explaining the ground for relief(s) and the legal provisions (if any) relied upon)

9.

Interim order, if any, prayed for. Pending final decision on the petition, the petitioner seeks issue of the following interim order:

(Give here the nature of the interim order prayed for with reasons)

10.

Particulars of Bank draft evidencing payment of fee for the petition or application made:(i) Branch of the Bank on which drawn:(ii) Name of the issuing branch(iii)

Demand Draft No.

Date

.....Amount Rs.

.....

11.

List of enclosures(See regulation 18 and Annexure III)1.2.3.4.

Signature of the Petitioner.

Form No. 2

(See Regulation 17)

Misc. Application No. of

In

Original Petition No. of

XXX

..... Applicant(Applicant/ Respondent)

versus

YYY

..... Respondent(Respondent/ Applicant)

Brief facts leading to the application

Relief or prayer:

Signature of the Applicant

Signature of the Authorized Representative

Place:

Date:

Form No. 3

(See Regulation 35)

Before The Company Law Board,

Principal Bench, Regional Bench, Bombay/ Calcutta/ Madras/ New Delhi

Reference Application of

In the Matter of the Companies Act, 1956 (Reserve Bank of India Act, 1934)

And

In the Matter of Section of the said Act

And

In the Matter of

(Name and address of the company)

And

In the Matter of

(Name and address of the applicant)

..... Applicant

State the name and address of the persons who should be given opportunity of being heard in disposing of this reference.

(Note: Please enclose as many additional copies of the reference application as there are persons as above named. This is without prejudice to the requirements of sub-regulation (1) of regulation 41.)

On the basis of the information available from the documents annexed hereto-

1. The applicant hereby makes reference to the Company Law Board, Principal Bench/ Regional Bench, under section of the Companies Act, 1956/ Securities Act. (Here state the nature of reference)

2. The applicant states as follow :

(Here set out the brief facts of the case)

3. The submission of the application are as follow :

(Submission)

4. The applicant has annexed hereto the documents or copies thereof as specified below:

5. The applicant is seeking specified order of the Company Law Board (Here specify the nature of the order sought for).

Place:

Date:

Signature of the applicant

List of Document

1.

2.

3.

Form No.4

(See Regulation 37)

Application by Depositor/debenture Holder Under Section 58A(9) or Section 117 C (4) of the Act or Section 45QA of the Reserve Bank of India Act, 1934 (*delete whichever is not applicable)

Before The Company Law Board (..... bench)

In the Matter of the Companies Act, 1956 (

1 of 1956

), (Section 58A of the Act or Section 45QA of the Reserve Bank of India Act, 1934)

And

In the Matter of (State the name of the Depositor/ Debenture Holder-applicant)

And

In the Matter of Limited (State the name of the company)

(i)

Name and address of the Depositor/ Debenture Holder-applicant:

(ii)

Name of the company and address of its Registered Office:

(iii)

Name(s) of Depositor (s)/ Debenture Holder(s) with full address:

(iv)

Amount of Deposits/ Debenture:

(v)

Fixed Deposit/ Debenture Receipt No. & date (Photostat copy to be enclosed):

(vi)

Terms and Conditions of Deposit/ Debenture as also date of Maturity of Deposit/ Debenture:

(vii)

Details of payment made, by the company, if any:

(viii)

Actual amount due as on date of application (Principal/ interest)

(ix)

Details of correspondence, if any, made between the company and the Depositor/ Debenture Holder (copy of correspondence to be enclosed):

(x)

Any other particular (s) as may be considered relevant:

The Depositor/ Debenture Holder-applicant, therefore, prays:-

(i)

that the company, above named be directed to make repayment of the aforesaid Deposit(s)/ Debenture(s) along with interest due thereon in accordance with the Terms and Conditions of the Deposit/ Debenture:

(ii)

that such further orders be passed as the Company Law Board may deem fit in the circumstances of the case.

(Signature of the Depositor/ Debenture Holder-applicant)

Place:

Date:

Note 1. - The application shall be accompanied by a fee of rupees fifty only by way of bank draft or bankers cheque in favour of the "Pay and Accounts Officer, Ministry of Corporate Affairs, New Delhi or Mumbai or Kolkata or Chennai as the case may be".

2. This application shall be made in duplicate.

Form No. 5

(See regulation 18(3))

Memorandum of appearance

To

The Bench Officer,

Company Law Board, Bench,

In the matter of Petitioner.

V.

..... Respondent

(C.P. No. of 199.....)

Sir,

Please take notice that I, AB, Secretary in whole-time practice/ practising Chartered Accountant/ practising Cost & Works Accountant, duly authorised to enter appearance, and do hereby enter appearance, on behalf of petitioner/ opposite party/ Registrar/ Regional Director/ Government of in the above-mentioned petition.

*A copy of the resolution passed by the Board of Directors authorising me to enter appearance and to act for every purpose connected with the proceedings for the said party is enclosed, duly signed by me for identification.

Yours sincerely,

Dated day of

Address:

Enclosure: as aforesaid

Tele No.:

*Strike out if not applicable.

Annexure-III

Documents to be attached with a petition

Sl. No.

Section of the Act

Nature of petition

Enclosures to petition

(1)

(2)

(3)

(4)

1.

Omitted. (vide GSR630(E) dated 12/8/2012)

2.

Omitted. (vide GSR630(E) dated 12/8/2012)

3.

Omitted. (vide GSR630(E) dated 12/8/2012)

4.

43

Petition praying for relief from consequences of failure to comply with conditions constituting it's a private company.

1. Copy of the memorandum and articles of association.2.

Copy of the documents showing that the default has been committed

in complying with the conditions laid down in clause (iii) of

sub-section (1) of Section 3.3. Affidavit verifying the

petition.4. Bank draft evidencing payment of application

fee.5. Memorandum of appearance with copy of the Board

Resolution or the executed Vakalatnama, as the case may be.

5.

49 (10)

Petition to direct the company to allow an immediate inspection of Register of investments, if the inspection is refused.

1. Documentary evidence, if any, showing the refusal on the part of the company to allow inspection of the Register of investments.2. Affidavit verifying the petition.3. Bank

draft evidencing payment of application fee.4. Memorandum of

appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.5. Any other relevant

correspondence exchanged in the matter with the company.6.

Acknowledgement receipt from the Registrar of Companies (See Regulation 14(3))

6.

58A(9) or 117 C of Section 45QA of the RBI Act, 1934

Application to direct the company to make repayment of the matured deposits or debentures

1. Copy of the deposit receipt2. Copy of the

correspondence exchanged with the company.3. Bank draft evidencing payment of application fee.

6A.

58AA

Petition to intimate the default in making repayment of the matured deposits from small depositors and interest thereon

1. Names and addresses of the officers of the company.
2. Full details of small depositors such as names, addresses, amount of deposits, rate of interest, dates of maturity and other terms and conditions of deposits.
3. Reasons for nonpayment or late payment.
4. Annual Reports for the last three years.
5. Projection and cash flow statement for the next three financial years duly certified by Statutory Auditors of the company.

7.

79(2)

Petition to sanction issue of shares at a discount

1. Copy of the memorandum and articles of association.
2. Copy of the notice calling for the meeting with Explanatory Statement and the Resolution sanctioning issue.
3. Copy of the minutes of the meeting at which the resolution was passed.
4. Copies of the last three years audited balance-sheets and profit and loss accounts, auditor's report and director's report.
5. Affidavit verifying the petition.
6. Bank draft evidencing payment of application fee.
7. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

8.

80A(1) Proviso

Petition to give consent to issue of further redeemable preference shares in lieu of irredeemable preference shares.

1. Copy of the memorandum and articles of association.
2. Documents showing the terms of issue of the existing preference shares.
3. Copy of the Board Resolution and resolution of general meeting for issue of further redeemable preference shares.
4. Copy of the latest audited balance-sheet with the profit and loss account of the company with auditor's report and director's report.
5. Affidavit verifying the petition.
6. Bank draft evidencing payment of application fee.
7. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

9.

111 or 111A

Petition for rectification of Register of Members on any ground including refusal of registration of transfer/ transmission of shares/ debentures by the company.

- Where the company is the petitioner.
1. Copy of the memorandum and articles of association.
 2. Latest audited balance-sheet and profit and loss account, auditor's report and director's report.
 3. Authenticated copy of the extract of the Register of Members.
 4. Copy of the resolution of the Board or Committee of Directors (where applicable).
 5. Any other relevant documents.
 6. Affidavit verifying the petition.
 7. Bank draft evidencing payment of application fee.
 8. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
 9. Two extra copies of the petition.
- Where the petition is made by any other person.
1. Documentary evidence in support of the

statements made in the petition including the copy of the letter written by the petitioner to the company for purpose of registering the transfer of, or the transmission of the right to, any share, or interest in, or debentures as also a copy of the letter of refusal of the company.2. Copies of the documents returned by the company.3. Any other relevant document.4. Affidavit verifying the petition.5. Bank draft evidencing payment of application fee.6. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.7. Two extra copies of the petition.

10.
113(1)

Petition for extending the period for delivery of the certificates of debentures.

1. Copy of the letter of allotment issued by the company.2. Copy of the instrument of transfer.3. Copies of the resolutions of the Board allowing the transfer and/or seeking extension.4. Affidavit verifying the petition.5. Bank draft evidencing payment of application fee.6. Copy of the latest audited balance-sheet and profit and loss account together with auditor's report and director's report.7. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

11.
113(3)

Petition for noncompliance of subsection (1) of Section 113 providing time-limit for issue of shares /debenture certificates.

1. Copy of the letter of allotment issued by the company.2. Documentary evidence for the lodgment of shares of debentures for transfer, if any.3. Copy of notice served on the company requiring it to make good the default in complying with the requirements of sub-section (1) of Section 113.4. Any other correspondence.5. Affidavit verifying the petition.6. Bank draft evidencing payment of application fee.7. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

11A.
117B(4)

Petition to intimate the default in making repayment of the matured debentures and interest thereon

1. Names and addresses of the officers of the company.2. Full details of debenture holders such as names, addresses, amounts, rate of interest, dates of maturity and other terms and condition of the debentures.3. Reasons for non-payment or late payment.4. Annual Reports for the last three years.5. Copy of the Prospectus issued at the time of issue of debentures.6. Copy of the Trust Deed.

12.
118(3)

Petition for furnishing copy of trust deed to person requiring it.

1. Copy of the letter written to the company for the issue of trust deed.2. Copy of the letter of refusal, if any, issued by the company.3. Affidavit verifying the petition.4. Bank draft evidencing payment of application fee.5. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.

13.

Omitted. (vide GSR630(E) dated 12/8/2012)

14.

144(4)

Petition to direct inspection of copies of instrument creating charge or register of charge.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.

15.

163(6)

Petition to direct inspection of register and returns or to furnish the copies thereof to the person requiring it.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.

16.

167

Application for directing to call annual general meeting.

1. Affidavit verifying the petition.2. Bank draft evidencing payment of application fee.

17.

186

Application for ordering for calling of general meeting (other than Annual General Meeting)

1. Documentary evidence in proof of status of the applicant.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.

18.

Omitted. (vide GSR 630(E) dated 12/8/2012)

19.

196(4)

Petition to pass an order directing immediate inspection of minute books or directing a copy thereof be sent forthwith to person requiring it.

1. Documentary evidence, if any, showing the refusal of the

company to give inspection to the petitioner.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.

20.

219(4)

Petition to pass an order directing that a copy of balance-sheet and auditor's report demanded be furnished forthwith to person concerned.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

21.

225(3) proviso

Petition to decide as to whether right of auditors to get their representation circulated and read out at meeting is being abused to secure needless publicity for defamatory matter and to order company's costs of an application to be paid in whole or in part by the retiring auditors.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

22.

235(2)

Petition to declare by an order that affairs of a company be investigated by inspector(s)

1. Documentary and/or other evidence in support of the statements made in the petition, as are reasonably open to the petitioner(s).2. Documentary evidence in proof of the eligibility and status of the petitioner(s) with the voting power held by each of them.3. Affidavit verifying the petition.4. Bank draft evidencing payment of application fee.5. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.6. Three extra copies of the petition.

23.

250

Complaint by any person for finding out facts about certain shares.

1. Documentary evidence, if any, in support of the complaint.2. Affidavit verifying the petition.3. Bank draft evidencing payment of application fee.4. Memorandum of appearance with copy of the Board's Resolution or the executed Vakalatnama, as the case may be.5. Three extra copies of the petition.

24.

284(4) proviso

Petition to decide as to whether the right of a director to get his representation circulated and read out at meeting is being abused to secure needless publicity for defamatory matter and to order company's costs to be paid in whole or in part by such director.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.
 2. Affidavit verifying the petition.
 3. Bank draft evidencing payment of application fee.
 4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
- 25.

304(2)(b)

Petition to pass an order directing immediate inspection of register maintained under section 303.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.
 2. Affidavit verifying the petition.
 3. Bank draft evidencing payment of application fee.
 4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
- 26.

307(9)

Petition to pass an order directing immediate inspection of register maintained under section 303.

1. Documentary evidence, if any, showing the refusal of the company to give inspection to the petitioner.
 2. Affidavit verifying the petition.
 3. Bank draft evidencing payment of application fee.
 4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
- 27.

397, 398, 399(4), 400, 401, 402, 403, 404, 405.

Petition to exercise powers in connection with prevention of oppression and/ or mismanagement.

1. Documentary and/or other evidence in support of the statements made in the petition, as are reasonably open to the petitioner(s).
2. Documentary evidence in proof of the eligibility and status of the petitioner(s) with the voting power held by each of them.
3. Where the petition is presented on behalf of members, the letter of consent given by them.
4. Statement of particulars showing names, addresses, number of shares held and whether all calls and other monies due on shares have been paid in respect of members who have given consent to the petition being presented on their behalf.
5. Where the petition is presented by member or members authorised by the Central Government under section 399(4), the order of the Central Government authorising such member or members to present the petition shall be similarly annexed to the petition.
6. Affidavit verifying the petition.
7. Bank draft evidencing payment of application fee.
8. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
9. Three spare copies of the petition.

28.

407(1)(b)

Petition to grant leave for an appointed of Managing Director of manager whose agreement as been terminated or set aside provided notice has been served on Central Government.

1. Documentary and/or other evidence in support of the statements made in the petition, as are reasonably open to the petitioner(s).2. Documentary evidence in proof of the eligibility and status of the petitioner(s) with the voting power held by each of them.3. Where the petition is presented on behalf of members, the letter of consent given by them.4. Statement of particular showing names, addresses, number of shares held and whether all calls and other monies due on shares have been paid in respect of members who have given consent to the petition being presented on their behalf.5. Where the petition is presented any member or members authorised by the Central Government under section 399(4), the order of the Central Government authorising such member or members to present the petition shall be similarly annexed to the petition.6. Affidavit verifying the petition.7. Bank draft evidencing payment of application fee.8. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.

29.

408(1) (2) and (5)

Petitioner to decide whether it is necessary to appoint Government director on the Board of directors and to advice Central Government accordingly.

1. Documentary and/or other evidence in support of the statements made in the petition, as are reasonably open to the petitioner(s).2. Documentary evidence in proof of the eligibility and status of the petitioner(s) with the voting power held by each of them.3. Affidavit verifying the petition.4. Bank draft evidencing payment of application fee.5. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.6. Three spare copies of the petition.

30.

409(1)

Petition to prevent change in Board of Directors likely to affect company prejudicially.

1. Documentary and/or other evidence in support of the statements made in the petition, as are reasonably open to the petitioner(s).2. Documentary evidence in proof of the eligibility and status of the petitioner(s) with the voting power held by each of them.3. Affidavit verifying the petition.4. Bank draft evidencing payment of application fee.5. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.6. Three spare copies of the petition.

31.

614(1)

Petition to pass an order directing a company to make good the default from its failure to make returns, etc. to the Registrar of Companies.

1. Copy of the notice served on the company to make good the default.
2. Documentary evidence as to the service of notice.
3. Affidavit verifying the petition.
4. Memorandum of appearance with copy of the Board Resolution or the executed Vakalatnama, as the case may be.
5. Bank draft evidencing payment of application fee.

32.

2A of the Monopolies Act

Petition for determination of any question of group, interconnection or same management in accordance with the provision of section 2A of the Monopolies Act.

1. Documentary evidence, in support of the statements made in the petition, as are reasonably open to the petitioner(s).
2.

Affidavit verifying the petition.
3. Bank draft evidencing payment of application fee.
4. three extra copies of the petition.

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